RISEBIRD
THE INTERVIEW MACHINE
Fast. Secure. Accurate.

SERVICE AGREEMENT FOR INTERVIEWER ONBOARDING

This Service Agreement ("Agreement") is entered into as of _____ (Date) ("Effective Date") by and between:

M/s Arhat Talent Solutions Private Limited ("Company") company registered under the Companies Act, 2013 having its principal place of business at No.20, 4th and 5th Floors, Vishnu Towers, ITI Layout J P Nagar, 1st Phase Bangalore Karnataka-560078 India (hereinafter referred as 'Risebird') which expression shall unless expressly excluded or repugnant to the subject or context means and includes, its successors and assignees.

(Interviewer Full Name) _____ S/o _____ residing at (Address with PIN code)_____ (hereinafter referred to as "Interviewer").

WHEREAS, Risebird desires to engage the Interviewer to conduct candidate interviews on its behalf, and the Interviewer agrees to perform such services under the terms and conditions set forth herein.

NOW, THEREFORE, in consideration of the mutual covenants contained herein, the parties agree as follows:

1. Scope of Services

The Interviewer shall:

- Conduct interviews with candidates as assigned by Risebird, ensuring a thorough evaluation of their skills, technical abilities, communication skills, and cultural fit.
- Prepare and deliver original, job-specific, and competency-based questions that assess both technical proficiency and soft skills.
- Provide unbiased, professional, and constructive evaluations for each candidate interviewed, using Risebird's prescribed formats and feedback mechanisms.

- Ensure the interview process adheres to guidelines shared by Risebird, including maintaining a video-on policy, sufficient internet connectivity, a professional background, and a distraction-free environment.
- Maintain the highest standards of integrity, impartiality, confidentiality, and professional ethics throughout the interviewing and feedback process.
- Attend mandatory calibration sessions, training workshops, or orientation sessions organized by Risebird to align with it's evaluation methodology and quality standards.
- Collaborate with Risebird's internal teams as required to provide additional context or clarification regarding candidate assessments.
- Record interview sessions (where ever applicable) and submit recordings, notes, evaluation sheets, and final reports within the specified turnaround time after the interview.
- Communicate promptly with Risebird in case of unforeseen scheduling conflicts, technical issues, or any event preventing interview completion.
- Assist in refining interview templates, competency frameworks, and evaluation methods if requested by Risebird.

2. Interviewer Responsibilities

The Interviewer agrees to fully comply with the responsibilities grouped into five categories as detailed in the Risebird Interviewer Onboarding Policy Agreement, including but not limited to:

- **Professional Conduct:** Maintain punctuality, dress appropriately, communicate respectfully, avoid multitasking during interviews, and create a professional and unbiased interview environment.
- **Communication:** Respond promptly to communications from Risebird, candidates, and associated stakeholders; report any conflicts, delays, or technical issues proactively.
- **Technical Readiness:** Ensure reliable internet connectivity, proper working hardware (webcam, microphone, laptop/PC), a quiet environment, and updated software tools necessary to conduct seamless interviews.

- **Ethics and Integrity:** Conduct fair and impartial evaluations, avoid any conflict of interest, and maintain strict confidentiality regarding candidate, client, and company information.
- **Time Discipline:** Strictly adhere to interview schedules, meet deadlines for submitting feedback reports, and allocate sufficient time for each interview without unnecessary delays.
- **Integrity and Privacy Assurance:** Protect candidate data, interview materials, and client information in accordance with applicable data privacy laws and Risebird's internal policies.
- **Question Design and Assessment Standards:** Design relevant and standardized interview questions that align with the job description, competency frameworks, and skill levels required for each role.
- **Candidate Interaction and Ethical Standards:** Treat all candidates with dignity, professionalism, and fairness without discrimination on any basis; uphold the highest human rights and non-bias principles.
- **Feedback Accuracy and Reporting Integrity:** Provide honest, detailed, and objective feedback on each candidate's performance, including their strengths, areas for improvement, and overall suitability for the role.
- **Proctoring (where applicable):** Monitor and ensure that interview sessions are conducted honestly and securely, preventing any form of candidate misconduct or impersonation.

3. Confidentiality

The Interviewer shall:

- Maintain the strict confidentiality of all information disclosed by Risebird, its clients, and candidates, whether oral, written, or electronic, during the term of this Agreement and thereafter.
- Keep all interview recordings, evaluation reports, candidate resumes, feedback documents, assessment criteria, questions, intellectual property, client lists, and any other confidential information secure and inaccessible to unauthorized parties.

- Use confidential information solely for the purpose of performing services for Risebird and not for any personal, professional, or third-party benefit.
- Not disclose, publish, or disseminate confidential information to any third party without the prior written consent of Risebird, unless legally compelled to do so by law enforcement or judicial order, in which case the Interviewer shall provide prompt written notice to Risebird before disclosure.
- Implement appropriate security measures, including password protection, encryption, and controlled access protocols, to prevent unauthorized access, loss, alteration, or theft of confidential information.
- Immediately notify Risebird if the Interviewer becomes aware of any unauthorized use, disclosure, or breach of confidential information.
- Upon termination or expiry of this Agreement, return or securely destroy all copies of confidential information in the Interviewer's possession, including backup files and stored media, and provide written confirmation of compliance if requested by Risebird.
- Acknowledge that breach of this confidentiality obligation may cause irreparable harm to Risebird and its clients, entitling Risebird to seek legal remedies including injunctive relief, damages, and recovery of legal costs.

4. Data Protection

The Interviewer must:

- Comply with all applicable data privacy laws, including but not limited to the Information Technology Act, 2000 (India), the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011, and the Digital Personal Data Protection Act, 2023, as well as Company guidelines while handing the data.
- Ensure that all candidate data, interview recordings, transcripts, and reports are handled lawfully, securely, and solely for purposes authorized by Risebird.
- Avoid unauthorized disclosure, misuse, or processing of personal data.
- Implement appropriate technical and organizational measures to protect against accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, personal data.

- Process personal data only for legitimate business purposes as authorized by Risebird and retain such data only as long as necessary for the said purposes.
- Acknowledge that interview recordings, transcripts, and reports will be handled per Risebird's strict data protection policies.

5. Professional Conduct

The Interviewer shall:

- Attend interviews punctually and ensure timely commencement and completion of interview sessions.
- Dress professionally, including wearing formal or business casual attire, particularly when webcam usage is required.
- Communicate clearly, courteously, and professionally at all times with candidates, Risebird personnel, and clients.
- Exhibit respectful behavior, avoiding any form of aggressive, discriminatory, or inappropriate language or conduct.
- Abstain from alcohol, drugs, or any intoxicating substances before or during interviews.
- Focus solely on interview activities during sessions, refraining from multitasking, distractions, or unrelated activities.
- Maintain neutrality and impartiality without exhibiting any bias based on race, gender, nationality, disability, age, religion, or any other characteristic.
- Ensure all interactions with candidates are conducted in a manner that builds confidence, trust, and fosters a professional evaluation environment.
- Proactively report any unethical behavior or technical issues encountered during interviews to Risebird.

6. Quality Control and Compliance

The Interviewer's performance will be continuously monitored and evaluated by Risebird to ensure adherence to the highest standards. This includes, but is not limited to:

- **AI and Human Review:** Interview recordings, transcripts, and feedback reports will be reviewed through automated tools and manual human assessment to ensure quality, completeness, fairness, and compliance with guidelines.

- **Candidate Feedback:** Candidates may provide ratings and feedback regarding the interview experience, which will be factored into the Interviewer's overall performance evaluation.
- **Client Evaluations:** Feedback from Risebird clients regarding the Interviewer's professionalism, technical evaluation, and overall conduct will be considered in the assessment.
- **System-Generated Metrics:** Key indicators such as interview punctuality, completion rates, adherence to schedules, quality of feedback submissions, and response times will be monitored.

Furthermore, Risebird reserves the right to:

- Conduct random audits of interview sessions and reports.
- Provide performance improvement notices to Interviewers not meeting the required standards.
- Suspend or terminate interview allocations in case of persistent quality issues or serious violations.

Failure to meet the defined standards may result in corrective actions, payment deductions, suspension from assignments, or termination of the Agreement, as outlined in Section 8.

7. Compensation and Payment Terms

- Compensation: The Interviewer shall be compensated on a per-interview basis at the rates mutually agreed between the Parties from time to time. The applicable fee schedule, interview rates, incentive structure, or any revised commercial terms shall be communicated separately by Risebird and shall be deemed to form an integral part of this Agreement without requiring execution of a fresh agreement.

- **Eligibility for Payment:** The Interviewer shall become eligible for payment only upon fulfillment of all of the following conditions:
  (a) successful completion of the assigned interview;

(b) submission of complete and accurate interview feedback, evaluation reports, scorecards, recordings, or any other deliverables prescribed by Risebird;

(c) successful completion of Risebird's quality assurance, audit, compliance, and validation process;

(d) confirmation that the interview has been accepted by Risebird and has not been rejected due to quality issues, professional misconduct, policy violations, incomplete deliverables, duplicate submissions, technical deficiencies, or any other valid reason; and

(e) compliance with all obligations contained in this Agreement and the Risebird Interviewer Onboarding Policy.

Merely conducting an interview shall not, by itself, create an unconditional right to receive payment.

- **Payment Cycle:** Subject to compliance with eligibity of payment and the provisions contained herein, payments for undisputed completed interviews shall ordinarily be processed within ninety (90) days from the date of submission of the applicable invoice or from completion of the relevant payment cycle prescribed by Risebird, whichever is later.

  The Interviewer acknowledges that the payment cycle is designed to accommodate client verification, invoice approval, payment realization, reconciliation, statutory compliance, quality review, and operational processing.

- **Client Payment Contingency (Pay-if-Paid Basis):** The Interviewer expressly acknowledges and agrees that Risebird operates as a technology-enabled interview facilitation platform connecting Clients with independent Interviewers and does not itself procure interview services for its own internal requirements.

  Accordingly, all compensation, incentives, fees, reimbursements, bonuses, or any other amounts payable in relation to a particular Client engagement shall be expressly contingent upon and subject to Risebird's actual receipt, realization, and clearance of the corresponding payment from the respective Client.

The Interviewer voluntarily accepts that the commercial risk of delayed or non-payment by the Client forms an inherent part of the engagement and expressly agrees that Risebird shall not be liable to make payment from its own funds where the corresponding payment has not been received from the Client.

- Delay, Dispute or Non-Payment by Client

  Without prejudice to any other rights available to Risebird, where the Client:

  a) disputes the interview services;
  b) rejects the interview deliverables;
  c) disputes the invoice;
  d) withholds payment;
  e) delays payment;
  f) refuses payment;
  g) becomes insolvent or bankrupt;
  h) ceases business operations; or

  otherwise fails to make payment for any reason whatsoever, Risebird shall have the unrestricted right to withhold, defer, suspend, reduce, adjust, or decline the corresponding payment payable to the Interviewer until the Client's payment has been fully received and realized.

  The Interviewer expressly waives any claim, demand, action, damages, compensation, interest, penalty, or legal proceedings against Risebird arising solely on account of such delay or non-payment by the Client.

- **No Guarantee of Client Payments**: The Interviewer expressly acknowledges that Risebird does not guarantee:

  a) that every assigned interview will result in billable revenue;
  b) that the Client will approve or accept the interview services;
  c) that the Client will make payment within any specified timeline; or

d) that the Client will ultimately make payment.

Risebird shall not be under any obligation to advance, finance, indemnify, guarantee, or otherwise satisfy any payment obligation from its own resources where the Client has defaulted in making payment.

- **Independent Recovery:** Where a Client expressly communicates that payment shall not be processed or where the dispute pertains exclusively to the interview services rendered by the Interviewer, Risebird may, at its sole and absolute discretion, and subject to confidentiality obligations, applicable law, and contractual commitments with the Client, share such business contact details of the relevant Client representative as may be reasonably available.

  The Interviewer may independently engage with such Client solely for clarification or amicable resolution of the payment dispute.

  Such disclosure shall not:

  (a) constitute an assignment of Risebird's contractual rights;

  (b) create any agency relationship;

  (c) impose any obligation upon Risebird to recover payment on behalf of the Interviewer; or

  (d) amount to any admission of liability by Risebird.

- **Right of Set-off and Deductions:** Risebird shall be entitled to deduct, adjust, recover, or set off from any amount payable to the Interviewer any sums arising from:

  (a) breach of this Agreement;

  (b) poor quality assessments;

  (c) client complaints;

  (d) refund obligations;

  (e) duplicate or erroneous payments;

  (f) statutory deductions including TDS or other applicable taxes;

  (g) penalties imposed under this Agreement; or

  (h) any other lawful recovery.

- **Taxes:** Risebird shall deduct Tax Deducted at Source (TDS) and other statutory deductions as required under applicable law.

- **Full and Final Acceptance**: By accepting interview assignments through the Risebird platform, the Interviewer confirms that he/she has carefully read, understood, and voluntarily accepted the payment mechanism contained in this Clause and agrees that payment shall remain subject to the conditions, timelines, client payment realization, and other contingencies contained herein.

8. Penalties and Legal Action

In case of violation of any responsibilities, Risebird reserves the right to:

- Impose payment deductions ranging from 5% to 100% of the Interviewer's payable amount depending on the severity of the violation.
- Delay payments pending investigation into any alleged misconduct or breach of Agreement.
- Deactivate or suspend the Interviewer's profile temporarily or permanently based on repeated non-compliance, misconduct, or serious breach.
- Recover from the Interviewer any damages, including direct, indirect, or consequential damages arising from reputational harm, loss of business, client dissatisfaction, or regulatory penalties.
- Initiate civil and/or criminal legal action against the Interviewer for offenses including but not limited to breach of confidentiality, data misuse, fraud, forgery, impersonation, or breach of trust.
- Report the Interviewer’s misconduct to appropriate authorities, clients, professional bodies, or placement platforms, impacting future professional opportunities.
- Enforce specific performance of obligations and/or seek injunctive relief to prevent further violations.
- Pursue action under applicable laws, including but not limited to the Information Technology Act, 2000, Digital Personal Data Protection Act, 2023, Indian Penal Code, 1860, and Prevention of Sexual Harassment at Workplace Act, 2013 (POSH).

In addition to the remedies above, if the Interviewer breaches the Non-Compete or Non-Solicitation obligations under this Agreement, the Interviewer shall be liable to pay liquidated damages as specified herein without prejudice to Risebird's right to claim additional damages or legal relief.

9. Independent Contractor Relationship

Nothing in this Agreement shall be construed to create an employer-employee, agency, or partnership relationship. The Interviewer provides services as an independent contractor/freelancer.

10. Non-Solicitation and Non-Contact

The Interviewer agrees:

- Not to contact or solicit Risebird clients or candidates directly outside of the Risebird platform.
- Not to represent themselves as an employee or agent of Risebird or its clients.
- Not to engage as an interviewer with any direct competitor of Risebird for a period of one (1) year following the expiration or termination of this Agreement.
- By signing this agreement, the Interviewer is barred from directly or indirectly approaching Risebird’s clients during the agreement and for one (1) year following the expiration or termination of this Agreement.

  In case of breach of this clause, the Interviewer shall be liable to pay Risebird liquidated damages equivalent to the greater of (i) INR 10,00,000 (Indian Rupees Ten Lakhs) or (ii) the total value of the services the Interviewer provided to Risebird in the twelve (12) months preceding the breach, without prejudice to any other remedies available under law

11. Additional Obligations

- The Interviewer shall not outsource any portion of the services to third parties without Risebird's prior written consent.

- The Interviewer shall not charge any candidate any fee, commission, or cost related to the interview process.
- The Interviewer shall solely and exclusively allocate their services to Risebird for the scope of this engagement and shall not divert candidates or interviews to other organizations.
- The Interviewer shall comply with any operational guidelines or amendments issued by Risebird during the term of this Agreement.
- In case of breach, Risebird may terminate this Agreement immediately and may inform relevant authorities if necessary.
- In case of termination or expiry of this Agreement, the Interviewer shall be bound to hand over all data, records, reports, recordings, candidate information, client information, or any other materials related to Risebird without retaining any copies.
- If Risebird discovers that the Interviewer has withheld any such data or is using it for their own benefit or for the benefit of any third party, Risebird reserves the right to claim damages, including but not limited to financial losses, reputational harm, and legal costs.

12. Termination

- Either party may terminate this Agreement by providing thirty (30) days' prior written notice to the other party.
- Risebird reserves the right to terminate this Agreement immediately in the event of any breach of ethical, legal, or contractual obligations including as mentioned in clause 8 & 10 by the other party.
- Termination for cause includes, but is not limited to, acts of misconduct, violation of applicable laws, breach of confidentiality, or actions that may harm the reputation or interests of Risebird.

Any activity that may harm Risebird's reputation on social media or other public platforms will be considered a breach of contract and may result in appropriate legal or contractual action

12. Miscellaneous

- This Agreement constitutes the entire agreement between the parties.
- Any amendments must be made in writing and signed by both parties.
- This Agreement shall be governed by and construed in accordance with the laws of India, both substantive and procedural, and any dispute or claims arising out of this Agreement or in relation thereto shall be referred to and settled by the courts of Gautam Budh Nagar (Noida), Uttar Pradesh. The Interviewer hereby submits to the exclusive jurisdiction of the courts of Gautam Budh Nagar (Noida), Uttar Pradesh. The laws of India shall apply in respect of any item or matter not stated or covered by this Agreement.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

For Arhat Talent Solutions Private Limited (Risebird)

Name: Pradeep Kumar
Title: Authorised Signatory
Date:

Interviewer

Name: (Name of Interviewer)
Date: